

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

4. JAYMIE CEDENO V. RAFAEL CEDENO

22FL0623

On May 26, 2026, the parties appeared before the court for a long cause hearing on the issue of spousal support. At that time, the court made orders regarding support and set the matter for review hearing to address the issues of support paid and whether there should be a termination date on support. The parties were ordered to file supplemental declarations no later than 10 days prior to the hearing date.

Neither party has filed a supplemental declaration. The court drops the matter from calendar due to the failure to file supplemental declarations.

TENTATIVE RULING #4: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE FAILURE TO FILE SUPPLEMENTAL DECLARATIONS.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. ANNE MCNELIS V. FERRIS NUESMEYER

PFL20160411

On June 5, 2026, Petitioner filed a Request for Order (RFO) seeking orders regarding Respondent's failure to comply with discovery. She concurrently filed a declaration of Samuel H. Park in support of her RFO and her Income and Expense Declaration. All required documents were served by mail on June 9th.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure "as an admission that the motion or other application is meritorious." El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. He had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner is requesting an order compelling Respondent to respond to Request for Production of Documents (Set One) within 10 days of the date of the hearing. She further requests monetary sanctions in the amount of \$997.25 pursuant to Civil Procedure §§ 2031.300(c), 2023.030, and 2023.010(d). She asks that the court set a review hearing and reserve on the issue of additional sanctions pending the review hearing.

According to Petitioner, on March 9, 2026, she served a Request for Production of Documents (Set One) on Respondent thereby making responses due no later than April 13, 2026. As of the date of preparing the RFO, Respondent still had yet to serve responses to the subject discovery.

The Civil Discovery Act authorizes all parties to request documents from the opposing party by way of a Request for Production of Documents. "Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve..." responses thereto. Cal. Civ. Pro. §2031.260. Where a party fails to provide timely responses, the party to whom the discovery was directed waives "any objection...including one based on privilege or on the protection of work product..." Cal Civ. Pro. §2031.300(a).

Here, Petitioner has established proper service of Request for Production of Documents (Set One). She has further established Respondent's failure to timely serve code compliant responses. As such, the court finds an order compelling him to comply is warranted and Petitioner's request is granted. Respondent is ordered to serve full and